

indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment.’ [Citation.] A cause of action for money had and received is stated if it is alleged the defendant ‘is indebted to the plaintiff in a certain sum ‘for money had and received by the defendant for the use of the plaintiff.’ [Citation.]” (*Farmers Ins. Exchange v. Zerin* (1997) 53 Cal.App.4th 445, 460.) The SAC fails to state facts to support a cause of action for money had and received. **Accordingly, the court sustains the demurrer, without leave to amend, as to the 4th cause of action.**

1st Cause of Action for UCL Violations

In order to state a claim for a violation of the UCL, Plaintiff must allege that Defendant committed a business act or practice that is fraudulent, unlawful, or unfair. (*Buller v. Sutter Health* (2008) 160 Cal.App.4th 981, 986.) A cause of action for violating this statute “borrows” actionable conduct and makes it independently actionable under the unfair competition law. (*Smith v. State Farm* (2001) 93 Cal.App.4th 700, 718.) **As Plaintiff has not stated a proper claim based on actionable conduct, the court sustains the demurrer, without leave to amend, as to the 1st cause of action.**

The demurrer is sustained, without leave to amend, as to all four causes of action in the SAC.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2502951	JAFFE vs NUEVO ROAD ANIMAL HOSPITAL VETERINARY CORPORATION	MOTION TO STRIKE 2ND AMENDED COMPLAINT

Tentative Ruling:

The motion is denied as moot in light of the ruling on the demurrer.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2601669	LEWIS vs ECOLOGY AUTO PARTS, INC.	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The hearing is continued to September 16, 2026, at 8:30 a.m. to consider the opposition. A reply may be filed by no later than September 9, 2026. No further briefing is permitted.